



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

MAR 23 2001

DOT-E 12659

EXPIRATION DATE: July 31, 2001

1. GRANTEE: Autofina Chemicals, Inc.
Philadelphia, PA
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the transportation in commerce of allyl methacrylate in certain UN1A1 drums overpacked in an additional UN1A1 drum. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.301(c) in that marking the exemption number on each package is waived, § 173.227 in that the inner drums must meet the packing group I performance level except as specified herein, and § 173.227(b)(2) in that the inner drums do not meet the closure requirements.
5. BASIS: This emergency exemption is based on the application of Autofina Chemicals, Inc. dated March 8, 2001, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant economic loss.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper shipping name -- Hazardous materials description	Hazard Class/ Division	Identi- fication Number	Packing Group
Toxic, liquid flammable, organic, n.o.s. (allyl methacrylate)	6.1	UN2929	PGI

7. SAFETY CONTROL MEASURES:

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- a. PACKAGING - Packaging is a drum within a drum consisting of a 55 gallon UN1A1 inner drum meeting the packing group II performance level, placed within an 85 gallon UN1A1 outer drum meeting all of the requirements for the outer drum of a Packaging Group I, Hazard Zone B, PIH package in § 173.227(b).
- b. OPERATIONAL CONTROLS -
 - i. A one-way, shipment is authorized from the warehouse in Linden, NJ to either the Autofina Chemicals, Inc. in Bristol, PA; to Safety Kleen in Bridgeport, NJ; or to Ross Incineration in Grafton, OH.
 - ii. Each shipment must be made by private or contract carrier in exclusive use from origin to destination, without intermediate pickup or delivery. Each drum must be blocked and braced for transport and may not be double stacked in the vehicle during transportation.
- 8. SPECIAL PROVISIONS: A current copy of this exemption must be maintained at each facility where the package is offered for transportation.
- 9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
- 10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle.
- 11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, 400 Seventh Street, SW, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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